Compliance Annotation

Framework: GDPR | **Compliance Level:** Non-Compliant / High Risk

QuickDeals Online Ltd.

Finding 1: [VIOLATION] Data Controller Identity & Transparency (Art. 13(1)(a)) The policy fails to provide a registered physical address, jurisdictional details, or a company registration number. Under GDPR Art. 13, the identity and contact details of the controller must be explicitly provided to ensure legal accountability. **References:** GDPR Art. 13(1)(a)

Finding 2: [VIOLATION] Absence of Legal Basis for Processing (Art. 6(1)) QuickDeals lists several purposes for data usage (e.g., marketing, personalization, fraud prevention) but fails to map any of these to a specific legal basis under Art. 6(1). This constitutes a fundamental breach of the lawfulness principle. **References:** GDPR Art. 6(1), Art. 13(1)(c)

Finding 3: [VIOLATION] Lack of DPO Appointment or Assessment (Art. 37) There is no mention of a Data Protection Officer (DPO) or a point of contact for data protection matters beyond a general support email. Given the large-scale tracking and processing of "browsing behavior," a DPO or a formal assessment of the need for one is required. **References:** GDPR Art. 37, Art. 38, Art. 39

Finding 4: [VIOLATION] Third-Party Disclosure & Recipient Specificity (Art. 13(1)(e)) The policy states data is shared with "business partners," "advertisers," and "data brokers" without naming the specific entities or the categories of recipients. Furthermore, there is no confirmation that these parties are bound by Data Processing Agreements (DPAs) under Art. 28. **References:** GDPR Art. 13(1)(e), Art. 28

Finding 5: [VIOLATION] Non-Compliant Cookie Consent (Art. 4(11), Art. 7) The "continuing to use our website" model of consent is strictly prohibited. Under GDPR and the ePrivacy Directive, consent must be a clear affirmative action (opt-in), freely given, specific, and informed. Implied consent is legally insufficient. **References:** GDPR Art. 4(11), Art. 7

Finding 6: [VIOLATION] Failure to Facilitate Data Subject Rights (Art. 12, 15-22) The policy only addresses access, update, and deletion. It entirely omits the right to restriction of processing (Art. 18), data portability (Art. 20), the right to object (Art. 21), and the right to lodge a complaint with a supervisory authority (Art. 13(2)(d)). **References:** GDPR Art. 12, Art. 15-22

Finding 7: [VIOLATION] Improper Age Threshold for Minors (Art. 8) The policy sets the age threshold at 13, which follows the US COPPA standard but violates the GDPR's default of 16 (unless specifically lowered by a member state to no less than 13). For a company targeting EU users, this threshold is legally deficient. **References:** GDPR Art. 8

Finding 8: [VIOLATION] Vague Security Measures (Art. 32) Describing security as "reasonable measures" fails the Art. 32 requirement to implement "appropriate technical and organisational measures." There is no mention of encryption, pseudonymization, or regular security testing. **References:** GDPR Art. 32

Finding 9: [VIOLATION] Breach of Transparency regarding Data Brokers (Art. 14) QuickDeals admits to receiving data from "data brokers" but fails to provide the information required under Art. 14, such as the categories of data obtained or the original source of the data, within the mandatory one-month timeframe. **References:** GDPR Art. 14

Finding 10: [VIOLATION] Non-Transparent Policy Change Management (Art. 12) The policy shifts the burden of staying informed onto the user by stating they should "review periodically". Under the principle of transparency, material changes must be actively communicated to data subjects (e.g., via email) before they take effect. **References:** GDPR Art. 12, Art. 13, Recital 39

Finding 11: [VIOLATION] Right to Withdraw Consent (Art. 7(3)) The policy fails to inform users that they have the right to withdraw their consent at any time for processing activities based on consent (such as cookies or specific marketing tracks) and that withdrawing consent must be as easy as giving it. **References:** GDPR Art. 7(3)